

subject to such modifications as may be necessary in order to render the instrument consistent with those regulations and as may be made by the governing body, so long as grants are made by the Board under those regulations and during any school year in which the school has been recognised by the Board for the purpose of grants.

Short title.

2. This Act may be cited as the Education (Compliance with Conditions of Grants) Act, 1919, and the Education Acts, 1870 to 1918, and this Act may be cited together as the Education Acts, 1870 to 1919.

CHAPTER 42.

An Act to make provision with respect to the restoration after the present war of certain trade practices, and to amend the law relating to munitions tribunals.

[15th August 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Restoration of
pre-war
practices.

1.—(1) Where, in any establishment to which this Act applies, any rule, practice or custom obtaining before the war in any industry or branch of an industry (hereinafter referred to as a trade practice) has, during and in consequence of the present war, been departed from, the owner of that establishment shall be under an obligation, at the expiration of two months from the passing of this Act, to restore or permit the restoration of the trade practice so previously obtaining, and for one year after such restoration is effected, or if it has been effected before the date of the passing of this Act for one year after that date, to maintain or permit the continuance of the trade practice.

(2) Where any industry or branch of industry, which before the war was not carried on in an establishment, commenced to be carried on in the establishment during the war and continues to be carried on therein after the termination thereof, or where the establishment is one which commenced to be worked after the beginning of war, the owner of the establishment shall be under the obligation, at the expiration of two months from the passing of this Act, to introduce or permit the introduction of, and for one year after such introduction is effected, or if it has been effected before the date of the passing of this Act for one year after that date, to maintain, or permit the continuance of, such trade practices as obtained before the war in other establishments where that industry or branch was

carried on under circumstances most nearly analogous to those of the establishment in question.

(3) Save as expressly provided by this section, nothing in this section shall prejudice the position of employers or persons employed after the war.

2.—(1) If any person fails to comply with an obligation imposed upon him by this Act, he shall be guilty of an offence under this Act, and on conviction shall be liable to a fine not exceeding twenty-five pounds for each day or part of a day during which the offence continues: Legal proceedings.

Provided that no person shall be entitled to institute proceedings against an owner of an establishment for failure to comply with any such obligation unless one week at least before instituting the proceedings he has served on the owner notice in the prescribed form of his intention to institute proceedings specifying the nature of the trade practice to which the obligation relates, and, if the change of practice was made in pursuance of an agreement, also specifying the agreement.

(2) Proceedings for offences under this Act shall be taken before munitions tribunals of the second class in like manner as for offences under the Munitions of War Acts, 1915 to 1917.

(3) Proceedings against an employer for an offence under this Act may be instituted by or on behalf of any worker affected or by or on behalf of a trade union or federation of trade unions, and any party to any such proceedings may appear and be represented by an official of the trade union or federation of trade unions, or of the federation or association of employers, to which he belongs.

(4) If an agreement has been entered into providing for the modification of an obligation under this Act, to which the owner of an establishment is a party, or to which any group or association of employers of which the owner is a member is a party, it shall be a good defence in any proceedings against him in respect of an alleged breach of his obligation if he proves that the breach is authorised by the agreement, and that the trade union whose custom it was before the war to maintain the trade practice to be modified is a party to the agreement or is a member of a federation of trade unions who are parties thereto.

(5) Where, in the case of proceedings against the owner of an establishment for failure to comply with an obligation imposed by subsection (2) of section one of this Act, the tribunal is satisfied that a failure to comply with the obligation has occurred, but that it has occurred from a genuine and reasonable doubt as to the nature of the trade practice to which the

obligation relates or otherwise as to the interpretation of the obligation, and not from any refusal or unwillingness to comply therewith, the tribunal may, instead of imposing any penalty, make an order declaring the true interpretation of such obligation in relation to the matter or matters complained of, and such an order shall be binding on the parties to the proceedings, and a copy thereof shall be registered at the Ministry of Labour.

Provisions
as to
munitions
tribunals

3.—(1) Subject to the provisions of this section, the provisions of the Munitions of War Act, 1915 to 1917, relating to munitions tribunals, shall, notwithstanding anything in those Acts limiting the duration thereof, continue in force so long as may be necessary for the purposes of this Act.

(2) The powers of the Minister of Munitions in relation to munitions tribunals shall, as from the passing of this Act, be transferred to the Minister of Labour :

Provided that nothing in this provision shall affect any appointment, choice of assessors, or rules of procedure (including rules as to appeals) made before and in force at the passing of this Act ; but anything which under the rules of procedure so in force is to or may be done by or to the Minister of Munitions shall or may be done by or to the Minister of Labour, and those rules shall have effect accordingly.

Establish-
ments to
which Act
applies.

4.—(1) The establishments to which this Act applies are establishments in which munitions work within the meaning of the Munitions of War Acts, 1915 to 1917, has during the present war been carried on, and any other establishment in which the departure from the practice was made in consequence of the two agreements of the nineteenth and twenty-fifth days of March nineteen hundred and fifteen respectively, commonly known as the Treasury agreements, or in pursuance of any other agreement in writing.

(2) This Act shall apply to Crown establishments, that is to say, establishments belonging to or under the control of His Majesty or any Government department, in like manner as it applies to establishments belonging to subjects, and any proceedings which under this Act can be taken by or against the owner of any establishment may be taken by or against the Crown establishment concerned in the name by which the establishment is usually known.

Regulations
by Minister
of Labour.

5. The Minister of Labour may make regulations prescribing anything which under this Act is to be prescribed, and as to the registration of orders which under this Act may be registered at the Ministry, the inspection of orders so registered, and generally for carrying this Act into effect.

6.—(1) This Act may be cited as the Restoration of Pre-War Practices Act, 1919. Short title and repeals.

(2) Subsection (3) of section four and paragraphs (1) and (2) of the Second Schedule to the Munitions of War Act, 1915, are hereby repealed. 5 & 6 Geo. 5.
c. 54.

CHAPTER 43.

An Act to authorise the Treasury to guarantee the Payment of Interest on a Loan to be raised by the Government of the Soudan. [15th August 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The Treasury may, subject to the provisions of this Act, guarantee in such manner as they think fit the payment of the interest on any loan raised by the Government of the Soudan for or in connexion with the purposes set out in the Schedule to this Act, not exceeding in the aggregate an amount sufficient to raise six million pounds. Power to Treasury to guarantee loans.

(2) A guarantee shall not be given in pursuance of this Act until the Government of the Soudan have provided to the satisfaction of the Treasury and the Secretary of State—

- (a) for raising, appropriating, and duly applying the loan for or in connexion with the purposes and in the manner set out in the Schedule to this Act, subject to any arrangements which may be made for the application of savings on one head of expenditure to another head of expenditure :
- (b) for the establishment and regulation of one or more sinking funds for the purpose of the repayment of the principal of the loan or any instalment thereof within a period not exceeding forty years from the date on which the loan or instalment is actually raised :
- (c) for charging on the general revenues and assets of the Soudan or on any other revenues or assets which may be made available for the purpose, with priority over any charges not existing at the date of the passing of this Act, the principal and interest of the loan and any sinking fund payments for the repayment of the principal of the loan :